

26SMCV02287 26SMCV02287

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TENTATIVE RULING

DEPARTMENT

207

HEARING DATE

July 6, 2026

CASE NUMBER

26SMCV02287

MOTIONS

Demurrer and Motion to Strike Portions of Complaint

MOVING PARTY

Defendant American Multi-Cinema, Inc. (erroneously sued as
AMC Entertainment Holdings, Inc.), Joined by Century City Mall, LLC

OPPOSING PARTY

Plaintiff Sydney Tillman

MOTIONS

This case arises from allegations that Plaintiff was physically attacked while attending an event at a movie theater.

On April 23, 2026, Plaintiff Sydney Tillman ("Plaintiff") brought suit against Defendants Century City Mall, LLC ("CCM"); AMC Entertainment Holdings, Inc. ("AMC"); The Pave Group, LLC ("Pave"); Zeus Networks, LLC ("Zeus"); Terrell Everett ("Everett"); Victoria Ramos ("Ramos"); and Mariahlynn Jacoby ("Jacoby") alleging six causes of action for (1) premises liability; (2) negligence; (3) negligent hiring, retention, and supervision of unfit employees; (4) intentional infliction of emotional distress; (5) assault; and (6) battery.

The third cause of action is alleged against Jacoby only, and the fifth and sixth causes of action are alleged against Everett, Ramos, and Jacoby only.

AMC demurs to the Complaint on the grounds that (1) the fourth cause of action fails to state facts sufficient to constitute a cause of action and (2) the entire Complaint fails to adequately allege agency, joint venture, partnership, employment, ratification, or vicarious liability as to AMC, pursuant to Code of Civil Procedure section 430.10, subdivision (e). The demurrer itself also demurs to the entire complaint on the ground of uncertainty, pursuant to Code of Civil Procedure section 430.10, subdivision (f), although this ground is omitted from the Notice of Demurrer.

AMC also moves to strike the request for attorneys' fees and punitive damages.

CCM joins AMC's demurrer and motion to strike.

Plaintiff opposes both motions and AMC replies.

ANALYSIS

1.

DEMURRER

"It is black letter law that a demurrer tests the legal sufficiency of the allegations in a complaint."

(Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) In testing the sufficiency of a cause of action, a court accepts “[a]s true all material facts properly pled and matters which may be judicially noticed but disregard contentions, deductions or conclusions of fact or law. [A court also gives] the complaint a reasonable interpretation, reading it as a whole and its parts in their context.” (290 Division (EAT), LLC v. City & County of San Francisco (2022) 86 Cal.App.5th 439, 450 [cleaned up]; Hacker v. Homeward Residential, Inc. (2018) 26 Cal.App.5th 270, 280 [“in considering the merits of a demurrer, however, “the facts alleged in the pleading are deemed to be true, however improbable they may be”].)

Further, in ruling on a demurrer, a court must “liberally construe” the allegations of the complaint “with a view to substantial justice between the parties.” (See Code Civ. Proc., § 452.) “This rule of liberal construction means that the reviewing court draws inferences favorable to the plaintiff, not the defendant.” (Perez v. Golden Empire Transit Dist. (2012) 209 Cal.App.4th 1228, 1238.)

In summary, “[d]etermining whether the complaint is sufficient as against the demurrer on the ground that it does not state facts sufficient to constitute a cause of action, the rule is that if on consideration of all the facts stated it appears the plaintiff is entitled to any relief at the hands of the court against the defendants the complaint will be held good although the facts may not be clearly stated, or may be intermingled with a statement of other facts irrelevant to the cause of action shown, or although the plaintiff may demand relief to which he is not entitled under the facts alleged.” (Gressley v. Williams (1961) 193 Cal.App.2d 636, 639.)

A.

UNCERTAINTY

“[D]emurrers for uncertainty are disfavored.” (Lickiss v. Financial Industry Regulatory Authority (2012) 208 Cal.App.4th 1125, 1135.) “A demurrer for uncertainty will be sustained only where the pleading is so bad that the responding party cannot reasonably respond - i.e., [a party] cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed

against [the party].” (Weil & Brown,
Cal. Practice Guide: Civil Procedure
Before Trial (The Rutter Group 2026) ¶ 7:85, p. 45, emphasis in original.)

As such, where a demurrer is
made upon the ground of uncertainty, the demurrer must distinctly specify
exactly how or why the pleading is uncertain, and where such uncertainty
appears by reference to page and line numbers.

(See *Fenton v. Groveland Comm. Services Dist.* (1982) 135
Cal.App.3d 797, 809 [“Generally, the failure to specify the uncertain aspects
of a complaint will defeat a demurrer based on the grounds of uncertainty”].)

AMC argues the Complaint is
uncertain because it combines multiple defendants together, without
differentiating which defendant is alleged to have done what conduct. Herein, Plaintiff alleges:

13.

Plaintiff is informed and believes, and based upon such information and belief
alleges that at all times relevant hereto, each Defendant, including DOES 1
through 50, was the owner, servant, agent, joint-venturer, employee, or
employer, of each of its co-Defendants, and in doing the acts hereinafter
mentioned, each Defendant was acting within the scope of its authority and with
the permission and consent of its co-Defendants, and each of them, and that
said acts of each Defendant was ratified by said Defendant's co-Defendants, and
each of them and every Defendant, as aforesaid, when acting as a principal, was
negligent in the selection and hiring of each and every other Defendant as an
agent, employee and/or joint ventures

14.

Plaintiff is informed and believes, and based upon such information and belief
alleges that all of the acts, conduct, and nonfeasance herein carried out by
each and every representative, employee or agent of each and every corporate or
business defendant, were authorized, ordered, and directed by the respective
defendant's corporate or business employers, officers, directors and/or
managing agents; that in addition thereto, said corporate or business
employers, officers, directors and/or managing agents had advance knowledge of,
authorized, and participated in the herein described acts, conduct and
nonfeasance of their representatives, employees, agents and each of them; and
that in addition thereto, upon the completion of the aforesaid acts, conduct and
nonfeasance of the employees and agents, the aforesaid corporate and business

employers, officers, directors and/or managing agents respectively ratified, accepted the benefits of, condoned and approved of each and all of said acts, conduct or nonfeasance of their co-employees, employers, and agents. In addition, at all times herein relevant, each defendant, whether named herein or designated as a DOE, was a principal, master, employer and joint ventures or every other defendant, and every defendant was acting within the scope of said agency authority, employment and joint venture.

15. On

or about May 5, 2024, PLAINTIFF was lawfully present for an event at the AMC Century City 15 located within Westfield Century City, 10250 Santa Monica Boulevard, in the City of Los Angeles, County of Los Angeles, State of California (the "SUBJECT PREMISES").

16. As

Plaintiff prepared and attempted to exit the premises, she was suddenly and without warning or provocation assaulted and battered by Defendants EVERETT, RAMOS, and DOES 1 through 50, inclusive, and each of them. Plaintiff was repeatedly struck in the face and upper body by Defendants (SUBJECT INCIDENT).

17. At

all relevant times, Defendants CENTURY, AMC, PAVE, and ZEUS, and DOES 1 through 50, inclusive, and each of them, owned, operated, managed, maintained, and/or controlled the SUBJECT PREMISES, including where the SUBJECT INCIDENT occurred.

18. At

all relevant times, Defendants EVERETT was employed by Defendant JACOBY and DOES 1 through 50, inclusive, and each of them, as a Senior Brand Manager.

19. As a

direct and proximate result of the conduct of Defendants CENTURY, AMC, PAVE, ZEUS, EVERETT, RAMOS, JACOBY, and DOES 1 through 50, Plaintiff sustained serious injuries.

(Complaint ¶¶ 13-19.)

The

Court does not find these allegations to be so faulty that AMC cannot determine what issues must be admitted or denied or what claims are directed against it. Although Plaintiff alleges that

Century, AMC, Pave, and Zeus collectively owned, operated, managed, maintained, and/or controlled the premises in question, it is clear that AMC is being named as an owner, operator, manager, maintainer, and/or controller of the subject AMC theater where Plaintiff was assaulted and battered, as contrasted with Defendants Everett and Ramos, who are alleged to be the ones who physically assaulted and battered Plaintiff.

Therefore, to the extent AMC raises the demurrer on the grounds of uncertainty, the Court does not find the Complaint to be uncertain.

B.

FAILURE TO STATE A CAUSE OF ACTION

i.

Agency,

Joint Venture, Partnership, Employment, Ratification, and Vicarious Liability

AMC argues the entire Complaint fails to state facts sufficient to constitute a cause of action, because it does not adequately allege an agency, joint venture, partnership, employment, ratification, or vicarious liability sufficient to hold AMC liable.

But a careful review of the Complaint demonstrates that unlike Jacoby, whom Plaintiff seeks to hold vicariously liable, Plaintiff seeks to hold AMC directly liable as the owner, operator, manager, maintainer, and/or controller of the subject premises:

22. Defendants CENTURY, AMC, PAVE, and ZEUS, and DOES 1 through 50 (including without limitation, their vendors, agents, employees, coworkers, and others), owned, possessed, controlled, occupied, supervised, inspected, leased, maintained, and/or managed the SUBJECT PREMISES where Plaintiff was injured on May 5, 2024.

23. At all times relevant to the allegations in this Complaint, Defendants CENTURY, AMC, PAVE, and ZEUS, and DOES 1 through 50, inclusive, and each of them, invited members of the general public, including Plaintiff, onto the SUBJECT PREMISES for the purpose of attending an event and related activities.

24. At all times relevant to the allegations

in this Complaint, and on or about May 5, 2024, when Plaintiff was lawfully present at the SUBJECT PREMISES, there existed a dangerous and unsafe condition on the premises, including but not limited to inadequate security presence, insufficient crowd control, failure to properly monitor and supervise patrons and activity in and around the premises, and failure to take reasonable measures to prevent or address escalating disturbances, all of which created a foreseeable and unreasonable risk of harm to persons on the property, including Plaintiff.

25. Defendants CENTURY, AMC, PAVE, and ZEUS,

and DOES 1 through 50, inclusive, and each of them, owed Plaintiff and other invitees a duty to exercise reasonable care in the ownership, operation, management, supervision, and control of the SUBJECT PREMISES, including the event area and surrounding ingress and egress routes. This duty included, among other things, the obligation to take reasonable steps to provide adequate security and crowd control, to monitor and respond to foreseeable disturbances or altercations, and to maintain the premises in a reasonably safe condition so as to prevent harm to lawful patrons, including Plaintiff.

26. Defendants CENTURY, AMC, PAVE, and ZEUS,

and DOES 1 through 50, inclusive, and each of them, had actual and/or constructive notice of the unsafe, hazardous, and dangerous conditions at the SUBJECT PREMISES prior to the SUBJECT INCIDENT, in that Defendants knew or, in the exercise of reasonable care, should have known that inadequate security, insufficient crowd control, and the failure to properly monitor, supervise, and manage patrons and activity in and around the premises created a foreseeable risk of altercations and harm to invitees. These conditions existed for a sufficient period of time and were observable upon reasonable inspection, monitoring, and supervision of the premises and individuals permitted to be present thereon. Despite such notice, Defendants failed to take reasonable corrective measures, including but not limited to providing adequate security personnel, implementing appropriate crowd control procedures, and intervening to prevent or de-escalate foreseeable disturbances, thereby creating and allowing the conditions that resulted in the SUBJECT INCIDENT.

27. Defendants CENTURY, AMC, PAVE, and ZEUS,

and DOES 1 through 50, inclusive, and each of them, breached their duty of reasonable care to Plaintiff and other invitees by failing to reasonably secure, supervise, and manage the SUBJECT PREMISES and its patrons, including during the event occurring on the date of the SUBJECT INCIDENT. Defendants

failed to implement adequate security and crowd control measures, failed to properly monitor and respond to escalating disturbances, and failed to take reasonable steps to prevent foreseeable acts of violence or assault. As a result of these failures, Defendants allowed a dangerous and unsafe environment to exist on the premises, which proximately contributed to the SUBJECT INCIDENT and Plaintiff's resulting injuries.

28. Defendants CENTURY, AMC, PAVE, and ZEUS, and DOES 1 through 50, inclusive, and each of them, further breached their duty of reasonable care in the following respects, including but not limited to:

- a) Failing to maintain the SUBJECT PREMISES in a reasonably safe condition for invitees, including during events and periods of increased patron activity;
- b) Failing to adequately staff, train, and supervise security personnel to address foreseeable risks of violence, altercations, and disorderly conduct;
- c) Failing to implement and enforce reasonable crowd control measures, including monitoring and managing patron flow and occupancy to prevent unsafe conditions;
- d) Failing to provide a sufficient security presence and visibility to deter, identify, and respond to foreseeable criminal conduct, including assaults;
- e) Failing to properly monitor the SUBJECT PREMISES for developing hazardous or volatile conditions, including escalating disputes, aggressive behavior, and disturbances among patrons;
- f) Failing to provide adequate warnings regarding known or reasonably discoverable dangerous conditions;
- g) Failing to establish, implement, and enforce reasonable policies and procedures concerning patron conduct, removal of disruptive individuals, and response to escalating incidents;
- h) Failing to timely intervene, de-escalate, or otherwise respond to dangerous conditions and ongoing altercations among

patrons;

i) Failing to adequately coordinate and communicate among staff and security personnel regarding safety concerns and active incidents;

j) Failing to reasonably inspect and monitor the SUBJECT PREMISES to discover and address dangerous conditions;

k) Failing to implement reasonable safety and security measures appropriate for the nature, use, and foreseeable risks of the SUBJECT PREMISES; and

l) Failing to take reasonable steps to prevent overcrowding and unsafe conditions given the nature of the event, venue, and expected attendance.

29. The Defendants CENTURY, AMC, PAVE, and ZEUS, and DOES 1 through 50, inclusive, and each of them, breached their duty of care, which was a legal cause of, and a substantial factor in, Plaintiff's harm and damages in this case.

[...]

35. Defendants CENTURY, AMC, PAVE, ZEUS, and DOES 1 through 50, inclusive, and each of them, owed Plaintiff a duty to reasonably operate, manage, supervise, and secure the SUBJECT PREMISES, including providing adequate security presence, monitoring patron activity, and implementing reasonable measures to prevent foreseeable disturbances and acts of violence. Defendants breached these duties by failing to provide adequate safety measures, allowing a dangerous environment to exist, and failing to take reasonable steps to protect patrons, including Plaintiff, from foreseeable harm, resulting in Plaintiff being assaulted during the SUBJECT INCIDENT. [...]

37. Defendant JACOBY and DOES 1 through 50, inclusive, and each of them, are vicariously liable for the acts and omissions of Defendant EVERETT, who was acting within the course and scope of his relationship with said Defendants at the time of the SUBJECT INCIDENT. Said acts and omissions were a substantial factor in causing Plaintiff's injuries.

38. Defendants CENTURY, AMC, PAVE, ZEUS, EVERETT, RAMOS, JACOBY, and DOES 1 through 50, inclusive, and each of them, further breached their duties by failing to implement and enforce reasonable safety policies and procedures, failing to adequately monitor and supervise patrons during a foreseeable high-traffic event, failing to intervene in or de-escalate known or developing disturbances, and failing to take reasonable steps to prevent foreseeable harm to invitees, including Plaintiff.

39. As a result of the foregoing breaches, Defendants negligently created, maintained, and failed to remedy unsafe conditions at the SUBJECT PREMISES that permitted the SUBJECT INCIDENT to occur.

40. Defendants CENTURY, AMC, PAVE, ZEUS, EVERETT, RAMOS, JACOBY, and DOES 1 through 50, inclusive, and each of them, breached their duty of care, which was a legal cause of, and a substantial factor in, Plaintiff's harm and damages in this case.

(Complaint
¶¶ 22-40.)

Thus, regardless of whether the allegations of a joint venture, agency, etc. in paragraphs 13-14 of the Complaint are sufficient to allege vicarious liability as to AMC and/or CCM, all causes of action would remain against AMC (and CCM) under a theory of direct liability.

ii.

Fourth

Cause of Action – Intentional Infliction of Emotional Distress

To

prevail on a cause of action for Intentional Infliction of Emotional Distress ("IIED"), a plaintiff must plead and ultimately prove: "(1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct." (Hughes v. Pair (2009) 46 Cal.4th 1035, 1050-1051.) A defendant's conduct is outrageous when "it is so extreme as to exceed all

bounds of that usually tolerated in a civilized community.” (Ibid. [cleaned up].) Further, the defendant’s conduct must be “intended to inflict injury or engaged in with the realization that injury will result.” (Id. at p. 1051 [cleaned up].) “Severe emotional distress means emotional distress of such substantial quality or enduring quality that no reasonable person in civilized society should be expected to endure it.” (Ibid.)

Here, Plaintiff alleges:

55. Defendants’ conduct toward Plaintiff, including the unprovoked and violent assault on Plaintiff during the SUBJECT INCIDENT occurring in a public event setting, and Defendants’ failure to intervene, prevent escalation, or otherwise stop the violent conduct occurring in Plaintiff’s presence, was extreme and outrageous conduct that exceeded all bounds of decency tolerated in a civilized community.

56. Defendants CENTURY, AMC, PAVE, ZEUS, EVERETT, RAMOS, JACOBY, and DOES 1 through 50, and each of them, intended to cause Plaintiff emotional distress, or acted with reckless disregard of the probability that Plaintiff would suffer emotional distress, knowing that Plaintiff was present at the SUBJECT PREMISES and would be exposed to the violent conduct occurring therein.

57. As a direct result of Defendants’ conduct, Plaintiff suffered severe emotional distress.

58. Defendants’ conduct described herein was intentional and done for the purpose of causing or with the substantial certainty that Plaintiff would suffer humiliation, mental anguish, and emotional and physical distress

59. Defendants’ conduct, including the violent assault on Plaintiff and the failure to intervene or take reasonable action to stop ongoing violence at the SUBJECT PREMISES, was a substantial factor in causing Plaintiff’s severe emotional distress. [...]

64. In subjecting Plaintiff to the wrongful treatment herein described, Defendants CENTURY, AMC, PAVE, ZEUS, EVERETT, RAMOS, JACOBY, and DOES 1 through 50, and each of them, willfully and maliciously with the intent to harm, Plaintiff, and in conscious disregard of

Plaintiff 's rights, so as to constitute malice and/or oppression under California Civil Code § 3294. Plaintiff is therefore entitled to recover punitive damages, in an amount to be determined by the court, against Defendants, CRITTENTON, ROBERT DOE, and DOES 1 through 50.

(Complaint

¶¶ 55-59, 64, emphasis added.)

While Everett's and Ramos's attack on Plaintiff may constitute extreme and outrageous conduct outside the bounds usually tolerated in a civilized society, there is generally no duty for bystanders to intervene in the middle of an attack.

(See, e.g., Peterson v. San Francisco Community College Dist.

(1984) 36 Cal.3d 799, 806 ["As a general rule one has no duty to control the conduct of another"].)

Thus, while AMC's (and CCM's) alleged "failure to intervene, prevent escalation, or otherwise stop the violent conduct" may be unfortunate in that AMC's and/or CCM's employees failed to stop the harm being done to Plaintiff in the moment, the Court cannot find as a matter of law that AMC's and CCM's mere inaction in that moment, after the attack had already begun, without more, constitutes "extreme and outrageous conduct" exceeding the bounds of a civilized society.

Therefore, the Court sustains AMC's demurrer to the fourth cause of action.

2.

MOTION TO STRIKE

Any party, within the time allowed to respond to a pleading, may serve and file a motion to strike the whole pleading or any part thereof.

(Code Civ. Proc., § 435, subd. (b)(1); Cal. Rules of Court, rule 3.1322, subd. (b).) On a motion to strike, the

court may: (1) strike out any irrelevant, false, or improper matter inserted in any pleading; or (2) strike out all or any part of any pleading not drawn or filed in conformity with the laws of California, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (a)-(b); Stafford v. Shultz

(1954) 42 Cal.2d 767, 782.)

a.

Punitive Damages

In ruling on a motion to strike punitive damages, “judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth.” (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.) To state a prima facie claim for punitive damages, a plaintiff must allege the elements set forth in the punitive damages statute, Civil Code section 3294. (College Hosp., Inc. v. Superior Court (1994) 8 Cal.4th 704, 721.) Per Civil Code section 3294, a plaintiff must allege that the defendant has been guilty of oppression, fraud, or malice. (Civ. Code, § 3294, subd. (a).) As set forth in the Civil Code,

(1)

“Malice” means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others. (2) “Oppression” means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights. (3) “Fraud” means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

(Civ. Code, § 3294, subd. (c)(1)-(3), emphasis added.)

Further, a plaintiff must assert facts with specificity to support a conclusion that a defendant acted with oppression, fraud or malice. To wit, there is a heightened pleading requirement regarding a claim for punitive damages. (See Smith v. Superior Court (1992) 10 Cal.App.4th 1033, 1041-1042.) “When nondeliberate injury is charged, allegations that the defendant’s conduct was wrongful, willful, wanton, reckless or unlawful do not support a

claim for exemplary damages; such allegations do not charge malice. When a defendant must produce evidence in defense of an exemplary damage claim, fairness demands that he receive adequate notice of the kind of conduct charged against him." (G. D. Searle & Co. v. Superior Court (1975) 49 Cal.App.3d 22, 29 [cleaned up].) In Anschutz Entertainment Group, Inc. v. Snepp, the Court of Appeal noted that the plaintiffs' assertions related to their claim for punitive damages were "insufficient to meet the specific pleading requirement." (Anschutz Entertainment Group, Inc. v. Snepp (2009) 171 Cal.App.4th 598, 643 [plaintiffs alleged "the conduct of Defendants was intentional, and done willfully, maliciously, with ill will towards Plaintiffs, and with conscious disregard for Plaintiff's rights. Plaintiff's injuries were exacerbated by the malicious conduct of Defendants. Defendants' conduct justifies an award of exemplary and punitive damages"]; see also Grieves v. Superior Court (1984) 157 Cal.App.3d 159, 166 ["The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages. Not only must there be circumstances of oppression, fraud, or malice, but facts must be alleged in the pleading to support such a claim"].)

Moreover, "the imposition of punitive damages upon a corporation is based upon its own fault. It is not imposed vicariously by virtue of the fault of others." (City Products Corp. v. Globe Indemnity Co. (1979) 88 Cal.App.3d 31, 36.) "Corporations are legal entities which do not have minds capable of recklessness, wickedness, or intent to injure or deceive. An award of punitive damages against a corporation therefore must rest on the malice of the corporation's employees. But the law does not impute every employee's malice to the corporation. Instead, the punitive damages statute requires proof of malice among corporate leaders: the officers, directors, or managing agents." (Cruz v. Home Base (2000) 83 Cal.App.4th 160, 167 [cleaned up].)

Here, the Complaint fails to allege oppression, fraud, or malice with requisite specificity. The Complaint does not allege who specifically at AMC and/or CCM became aware of the propensity for danger, when they became so aware, or how they were made aware, much less that a knowing or reckless decision not to protect the public from a foreseeable attack was made on the part of AMC's and/or CCM's corporate leadership.

Therefore,
the Court grants AMC's motion to strike punitive damages.

b.

Attorneys' Fees

"California follows what is commonly referred to as the American rule, which provides that each party to a lawsuit must ordinarily pay his own attorney fees." (Trope v. Katz (1995) 11 Cal.4th 274, 278.)

Code of Civil Procedure section 1033.5, which outlines recoverable costs to a prevailing party under Code of Civil Procedure section 1032, permits the recovery of attorneys' fees when authorized by contract, statute, or law. (Code Civ. Proc., § 1033.5, subd. (a)(10).)

Code of Civil Procedure section 1021 provides "[e]xcept as attorney's fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties [...]"

Similarly, Civil Code section 1717 provides "[i]n any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs." (Civ. Code, § 1717, subd. (a).)

Here, the Complaint does not identify any statutory, contractual, or other legal basis to recover attorneys' fees.

In opposition, Plaintiff argues, "To the extent that ongoing discovery reveals that Defendants' conduct violates specific statutory provisions carrying fee-shifting remedies, or involves operational agreements yet unproduced, foreclosing categories of remedies at the pleading stage is improper. Accordingly, Defendant's attempt to strike the fee request should be denied, leaving the determination of fee eligibility to a proper post-trial motion." (Opposition at p. 7.)

The Court disagrees. Plaintiff must at least allege a legal, statutory, or contractual basis to recoup attorneys' fees in order to appropriately request them in the Complaint.

Therefore, the Court grants AMC's motion to strike the request for attorneys' fees from the Complaint.

3.

LEAVE TO AMEND

A

plaintiff has the burden of showing in what manner the complaint could be amended and how the amendment would change the legal effect of the complaint, i.e., state a cause of action. (See *The Inland Oversight Committee v. City of San Bernardino* (2018) 27 Cal.App.5th 771, 779; *PGA West Residential Assn., Inc. v. Hulven Int'l, Inc.* (2017) 14 Cal.App.5th 156, 189.) A plaintiff must not only state the legal basis for the amendment, but also the factual allegations sufficient to state a cause of action or claim. (See *PGA West Residential Assn., Inc. v. Hulven Int'l, Inc.*, supra, 14 Cal.App.5th at p. 189.) Moreover, a plaintiff does not meet his or her burden by merely stating in the opposition to a demurrer or motion to strike that "if the Court finds the operative complaint deficient, plaintiff respectfully requests leave to amend." (See *Major Clients Agency v Diemer* (1998) 67 Cal.App.4th 1116, 1133; *Graham v. Bank of America* (2014) 226 Cal.App.4th 594, 618 [asserting an abstract right to amend does not satisfy the burden].)

Here, Plaintiff

has failed to meet her burden as Plaintiff does not identify any facts that could be added to the Complaint to cure the deficiencies above. In particular, page 10 of the opposition to the demurrer is entirely blacked out and Plaintiff's opposition to the motion to strike does not specify what facts could be added to cure the deficiencies.

CONCLUSION AND ORDER

For the reasons stated, the Court sustains AMC's demurrer (joined by CCM) to the fourth cause of action without leave to amend, but overrules the demurrer otherwise.

Further, the Court grants AMC's motion (joined by CCM) to strike Plaintiff's request for attorneys' fees and punitive damages without leave to amend, but without prejudice, should Plaintiff later uncover facts in discovery that support allegations of punitive damages and/or attorneys' fees against AMC and/or CCM.

Further, the Court orders AMC and CCM to file answers to the Complaint on or before July 24, 2026.

Further, the Court will enter the proposed Orders lodged on June 4, 2026 in conformity with the rulings.

AMC shall also provide notice of the Court's rulings/Orders, and file the notice with a proof of service forthwith.

DATED: July 6, 2026 _____/s/ _____

Michael
E. Whitaker

Judge
of the Superior Court